ÉDITIONS LISÂN · LISÂN CAMPUS
Lectures en anglais juridique · niveau B1

Legal Stories from Abidjan

Quatre courts romans juridiques en anglais

I. The Missing Will (Le testament introuvable) : successions, testament, enfant à naître.

II. The Locked Door (La porte fermée) : bail d'habitation, expulsion, transaction.

III. A Night at the Police Station (Une nuit au commissariat) : garde à vue, droits du suspect, preuve.

IV. Two Hundred Uniforms (Deux cents uniformes) : contrat, force majeure, tribunal de commerce.

Histoires, personnages, entreprises et décisions fictifs.

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Avant de lire

Ces quatre romans suivent les affaires du cabinet **Kouassi & Traoré**, à Abidjan, à travers les yeux de **Moussa Diarra**, étudiant en première année de droit et stagiaire au cabinet. Chaque affaire reprend une matière de la licence 1 : les successions, le bail, la procédure pénale et les contrats.

Personnage	Qui est-ce ?
Moussa Diarra	19 ans, étudiant en licence 1 de droit, stagiaire. Il note une leçon dans son carnet à la fin de chaque affaire.
Maître Aïcha Traoré	34 ans, avocate au barreau d'Abidjan : « un avocat ne crie pas, il apporte des preuves ».
Maître Paul Kouassi	58 ans, associé principal du cabinet, amateur de maximes latines.

Comment lire

1. Lis d'abord les **mots clés** du chapitre (*Words to know*).
2. Lis le chapitre d'une traite, sans t'arrêter sur chaque mot inconnu.
3. Relis-le en t'aidant du *Language corner*.
4. Réponds par écrit aux questions *Did you understand?*, puis vérifie avec le corrigé en fin de livret.

> **À RETENIR — à écouter**
> Sur **Lisân Campus** (parcours « Romans juridiques en anglais »), chaque chapitre s'écoute avec plusieurs voix, chaque paragraphe a sa traduction française, et un mini-exercice vérifie la compréhension.

I. The Missing Will



Un planteur de cacao meurt à Bouaké. Son neveu réclame tout l'héritage. Sa veuve, enceinte, affirme qu'il existe un testament. Encore faut-il le retrouver.

Chapter 1. A Widow at the Door

Words to know

Word	Français	Example
a law firm	un cabinet d'avocats	*Moussa works at a small law firm on Saturdays.*
a widow	une veuve	*The widow came from Bouaké to see a lawyer.*
the estate	la succession (les biens du défunt)	*The estate includes a house and two cocoa plantations.*
an heir	un héritier	*The nephew says he is the only heir.*
a will	un testament	*Did your husband make a will?*
an unborn child	un enfant à naître	*An unborn child can inherit if it is born alive.*

The story

On his first Saturday at Kouassi & Traoré, a small law firm in the Plateau district of Abidjan, Moussa Diarra arrived early. He was nineteen, a first-year law student, and he wore his only tie. The office smelled of coffee and old paper. Behind a desk covered with files, Maître Aïcha Traoré looked up and smiled. “Welcome, Moussa. Sit down and listen. Today you will meet your first client.”

The client was a woman of about thirty, dressed in a dark pagne. Her name was Akissi Yao. She had traveled from Bouaké by bus during the night. Three weeks earlier, her husband, Konan Yao, a cocoa planter, had died of a heart attack. Now his nephew, Gervais, wanted the house and the two plantations. “He says I have no children, so I have no rights,” she said quietly. “He gave me one month to leave the house.”

Maître Traoré interroge Mme Yao. Moussa prend des notes.

Aïcha — Mrs. Yao, I am very sorry for your loss. Were you legally married to Mr. Yao?

Akissi — Yes. We were married at the town hall in Bouaké, six years ago.

Aïcha — Then you are his wife in the eyes of the law. Did your husband make a will?

Akissi — He told me he went to a notary two years ago. But I never saw any paper.

Moussa — Excuse me, madam. You said you have no children?

Akissi — Not yet. I am four months pregnant. Konan was so happy when he heard the news.

Aïcha — That changes everything. Your baby was conceived before his death. If the child is born alive, the child is an heir.

After Mrs. Yao left, Moussa looked at his notes. “How can a baby who is not born inherit anything?” he asked. Maître Traoré took a thick book from the shelf. “It is a very old rule,” she said. “In Latin: infans conceptus pro nato habetur, quoties de commodis ejus agitur. A child who is conceived is treated as born whenever it is in the child’s interest. The only condition is that the child must be born alive.”

“So Gervais is wrong,” said Moussa. “Probably,” she answered. “But in law, probably is not enough. We need proof. First, the marriage certificate. Second, a medical certificate for the pregnancy. Third, and most important, the will. If Mr. Yao really went to a notary, a copy of the will must exist somewhere in Bouaké.” She closed the book. “Pack a bag, Moussa. On Monday, we are going to Bouaké.”

Language corner

Expression	Français	Remarque
to inherit / an inheritance	hériter / un héritage	On hérite *de* quelqu’un en français ; en anglais : *to inherit from someone*.
the deceased	le défunt	Mot formel des actes juridiques : *the estate of the deceased*.
in the eyes of the law	aux yeux de la loi	Expression courante pour dire « juridiquement ».
proof / evidence	la preuve	*Proof* : ce qui établit un fait ; *evidence* : les éléments de preuve (indénombrable).

Did you understand?

1. Why does Gervais think that Mrs. Yao has no rights?
2. Under what condition can the unborn child inherit?

Chapter 2. The Notary's Register

Words to know

Word	Français	Example
a notary	un notaire	*The notary keeps the original of every will.*
a register	un registre	*The clerk opened the register of wills.*
an authentic will	un testament authentique	*An authentic will is made before a notary and witnesses.*
a witness	un témoin	*Two witnesses signed the will.*
a forgery	un faux	*Gervais says the will is a forgery.*
a certified copy	une copie certifiée conforme	*The notary gave them a certified copy.*

The story

The road to Bouaké was long and hot. Moussa watched the green fields and thought about the rule from the Latin book. In the afternoon, they found the office of Maître Dosso, the notary, near the big market. It was a quiet building with a blue door. A clerk asked them to wait. On the wall, Moussa read a sign: “The notary keeps the original. You receive a copy.”

Maître Dosso was an old man with white hair and round glasses. He listened to Maître Traoré, then opened a large green register. He turned the pages slowly. “Yao, Konan... Here it is. An authentic will, dictated in this office on the twelfth of March, two years ago, before me and two witnesses.” Moussa held his breath. The will existed.

Le notaire lit les dispositions du testament. Soudain, la porte s’ouvre.

Maître Dosso — Mr. Yao leaves the house to his wife. His children, born or to be born, will share the two plantations equally.

Moussa — “Born or to be born”... He was thinking about the baby!

Maître Dosso — And he leaves one field near the river to his nephew, Gervais Yao.

Gervais — One field? This is a lie! That paper is a forgery. My uncle could not even read!

Maître Dosso — Sir, your uncle did not need to read. He dictated his will, I wrote it, I read it back to him, and the witnesses signed.

Aïcha — An authentic deed is strong evidence, Mr. Yao. If you think it is false, you must go to court and prove it.

Gervais — Then I will see you in court!

Gervais left and slammed the blue door. The clerk shook his head. Maître Dosso calmly prepared a certified copy of the will, stamped it and signed it. “Keep this safe,” he said. “The original stays here, in my safe. It will not move.”

That evening, in a small restaurant, Moussa could not eat. “He will go to court. Can he win?” Maître Traoré drank some water. “To attack an authentic deed, he must use a special procedure and prove that it is false. That is very difficult. But he will try another argument. I think he will say that his uncle was sick and not of sound mind.” She smiled. “So tomorrow, we visit the hospital.”

Language corner

Expression	Français	Remarque
to leave something to someone	léguer quelque chose à quelqu'un	Dans un testament : *He leaves the house to his wife.*
a deed	un acte (notarié)	*An authentic deed* : un acte authentique.
of sound mind	sain d'esprit	Condition de validité d'un testament : *a testator of sound mind*.
I will see you in court	on se verra au tribunal	Menace de procès, très fréquente dans les films.

Did you understand?

1. Why was it not a problem that Mr. Yao could not read?
2. What does the will give to Gervais?

Chapter 3. The Judgment

Words to know

Word	Français	Example
a hearing	une audience	*The hearing started at nine o'clock.*
to contest	contester	*Gervais contests the will.*
a medical certificate	un certificat médical	*The doctor wrote a medical certificate.*
the court rules	le tribunal statue	*The court rules that the will is valid.*
valid	valable	*An authentic will is valid if the testator is of sound mind.*
a lesson	une leçon	*Moussa learned an important lesson.*

The story

Two months later, the courtroom in Bouaké was full. Gervais sat on one side with his lawyer, a tall man in a black robe. Mrs. Yao sat on the other side, next to Maître Traoré. Her belly was round now. Moussa sat behind them, with a file on his knees. When the judge entered, everybody stood up. "Please be seated," she said. "The case of Yao against Yao."

Les plaidoiries. L'avocat de Gervais parle le premier.

Gervais's lawyer — Your Honor, Mr. Konan Yao was very sick two years ago. A sick man cannot make a valid will.

Judge — Maître Traoré, what is your answer?

Aïcha — Your Honor, being sick is not the same as being of unsound mind. Here is a certificate from the hospital of Bouaké.

Aïcha — In March, two years ago, Mr. Yao had high blood pressure, but the doctor says his mind was perfectly clear.

Aïcha — The two witnesses are also here. They will tell the court that he spoke clearly and knew what he wanted.

Judge — Thank you. The court will deliver its judgment in two weeks.

Two weeks later, the judgment was clear. The court ruled that the will was valid: Mr. Yao was of sound mind, and the authentic deed had been made correctly. The house went to his wife. The plantations would go to his children, born or to be born. Gervais received the field near the river, nothing more. He left the courtroom without a word.

In September, Moussa received a message on his phone. It was a photo of a baby girl, with a short text: "Born this morning, alive and healthy. Her name is Espérance. Thank you, Maître Traoré, and thank you, Moussa." Moussa showed the photo to Maître Kouassi, the senior partner of the firm. The old lawyer smiled. "You see," he said, "the law protected this child before she was born. Never forget it."

Language corner

Expression	Français	Remarque
Your Honor	Monsieur / Madame le Président	Formule pour s'adresser au juge (orthographe britannique : *Your Honour*).
to deliver a judgment	rendre un jugement	On dit aussi *to hand down a judgment*.
the senior partner	l'associé principal	Dans un cabinet : *partner* (associé), *associate* (collaborateur).
Yao v. Yao	Affaire Yao contre Yao	*v.* (versus) se lit « v » ou « versus » dans le nom d'une affaire.

Did you understand?

1. What was Gervais's main argument at the hearing?
2. Which two pieces of evidence did Maître Traoré use?

II. The Locked Door



Ibrahim, étudiant venu de Korhogo, loue un studio à Cocody. Le toit fuit, il arrête de payer, et un matin son bailleur change la serrure. Qui a raison ?

Chapter 1. Rain in the Studio

Words to know

Word	Français	Example
a lease	un bail	*Ibrahim signed a one-year lease.*
a landlord	un bailleur, un propriétaire	*The landlord lives in Angré.*
a tenant	un locataire	*The tenant must pay the rent every month.*
a deposit	une caution	*He paid a deposit of two months' rent.*
a leak	une fuite	*There was a leak in the roof.*
repairs	des réparations	*The landlord must carry out major repairs.*

The story

Ibrahim Cissé was twenty-one and came from Korhogo. He studied economics at the university and rented a small studio in Cocody: one room, a kitchen corner and a shower. The lease was for one year. The rent was seventy-five thousand francs a month, and he had paid a deposit of two months' rent. His landlord, Mr. Gnagne, was a polite man who lived in Angré.

In June, the rainy season arrived. One night, Ibrahim woke up because water was falling on his bed. The roof had a leak. He put a bucket on the floor and called Mr. Gnagne the next morning. "I will send someone," said the landlord. Nobody came. Ibrahim called again and again. After three weeks, the ceiling was black, his books were wet, and the landlord no longer answered the phone.

Ibrahim en parle à son ami Moussa, à la bibliothèque de la faculté.

Ibrahim — I am tired, Moussa. My books are ruined. So this month, I will not pay the rent.

Moussa — Be careful. If you stop paying, you also break the lease.

Ibrahim — But he broke it first! A landlord must repair the roof, no?

Moussa — Yes, major repairs are his responsibility. But you should send him a formal letter first, not just stop paying.

Ibrahim — A letter? He does not even answer his phone. No, my decision is made.

Ibrahim did not pay in July. He did not pay in August either. He did not write any letter. He spent the holidays with his family in Korhogo and forgot the problem for a while. When he came back to Abidjan at the end of August, with a bag of yams from his mother, he climbed the stairs, put his key in the lock... and the key did not turn.

Someone had changed the lock. On the door, there was a piece of paper with a short message: “Rent not paid for two months. The studio is no longer yours. Mr. Gnagne.” All his things were inside: his clothes, his laptop, his student card. Ibrahim sat down on the stairs with his bag of yams. Then he took his phone and called Moussa.

Language corner

Expression	Français	Remarque
to rent / the rent	louer / le loyer	*To rent* sert pour le locataire et le bailleur ; *to let* (britannique) : donner en location.
to break a contract	ne pas respecter un contrat	Le terme juridique est *to breach a contract*.
a formal letter	une lettre officielle	La mise en demeure se dit *a formal notice* ou *a letter of demand*.
responsibility	la charge, l’obligation	*Major repairs are the landlord’s responsibility.*

Did you understand?

1. Why did Ibrahim stop paying the rent?
2. What did Moussa advise him to do first?

Chapter 2. Nobody Takes the Law into His Own Hands

Words to know

Word	Français	Example
eviction	l'expulsion	*An eviction requires a court order.*
a court order	une décision de justice	*Without a court order, the landlord cannot evict the tenant.*
a bailiff	un commissaire de justice (huissier)	*Only a bailiff can carry out an eviction.*
a formal notice	une mise en demeure	*Maître Traoré sent a formal notice to the landlord.*
rent arrears	les arriérés de loyer	*Ibrahim owes two months of rent arrears.*
a meeting	une réunion, un rendez-vous	*They arranged a meeting at the firm.*

The story

The next morning, Ibrahim sat in front of Maître Traoré. Moussa sat next to him. Ibrahim told the whole story: the leak, the calls, the two months without rent, the new lock. Maître Traoré listened without interrupting. Then she put down her pen. "I have bad news for you, Ibrahim," she said. "And worse news for your landlord."

"The bad news first. You were wrong to stop paying without saying anything. A tenant cannot decide alone to keep the rent. You had to send a formal notice and, if necessary, ask a judge. So today, you owe two months of rent arrears." Ibrahim looked at the floor. "Now the worse news, for Mr. Gnagne. In our law, nobody can take the law into his own hands. A landlord cannot change the lock and throw out a tenant. To evict someone, he needs a court order, and only a bailiff can carry it out. What Mr. Gnagne did is illegal."

Maître Traoré appelle M. Gnagne, haut-parleur activé.

Aïcha — Good morning, Mr. Gnagne. I am Maître Traoré, Mr. Cissé's lawyer. You changed the lock of his studio.

Mr. Gnagne — Of course! He did not pay for two months. It is my house.

Aïcha — It is your house, but it is his home under the lease. Only a judge can end the lease and order an eviction.

Mr. Gnagne — So what? Courts are slow and expensive.

Aïcha — Then let us avoid court. Come to my office on Thursday. We can find an agreement. If not, my client will claim damages.

Mr. Gnagne — ...Thursday, ten o'clock. I will be there.

After the call, Maître Traoré asked Moussa to write a formal notice to Mr. Gnagne. "Short and precise," she said. "The facts, the rule, what we ask, and a deadline." Moussa wrote, deleted, wrote again. In the end, his letter asked the landlord to give back the keys within forty-eight hours and to repair the roof within fifteen days.

Maître Traoré read it twice and changed only one word. “Good work,” she said. Moussa felt proud. Then she turned to Ibrahim. “On Thursday, you will listen, and you will not get angry. And you will bring an offer to pay your arrears. A good agreement needs two people who make an effort.”

Language corner

Expression	Français	Remarque
to take the law into one’s own hands	se faire justice à soi-même	Règle fondamentale : *nobody may take the law into his own hands*.
to evict / an eviction	expulser / une expulsion	Toujours sur décision de justice : *an eviction order*.
damages	des dommages-intérêts	Toujours au pluriel ; *damage* (singulier) = le dégât.
a deadline	un délai, une date limite	*Within forty-eight hours* : dans un délai de quarante-huit heures.

Did you understand?

1. What was Ibrahim’s mistake?
2. Why was the landlord’s action illegal?

Chapter 3. The Settlement

Words to know

Word	Français	Example
a settlement	un accord, une transaction	*They signed a settlement on Thursday.*
in installments	en plusieurs versements	*Ibrahim will pay his arrears in three installments.*
to deduct	déduire	*The cost of the books will be deducted from the arrears.*
to sign	signer	*Both parties signed the agreement.*
binding	qui a force obligatoire	*A signed settlement is binding on both parties.*
a compromise	un compromis	*Each party accepted a compromise.*

The story

On Thursday, Mr. Gnagne arrived at ten o’clock exactly, in a gray suit, with his nephew. He did not smile. Ibrahim was already there, very nervous. Maître Traoré offered everyone a glass of water and placed the formal notice on the table. “We are not here to fight,” she said. “We are here to find a solution that both of you can accept.”

La négociation commence.

Mr. Gnagne — I want my money. One hundred and fifty thousand francs. Today.

Ibrahim — I want to pay, sir. But I cannot pay everything today. I can pay in three installments.

Aïcha — And the water damaged books worth thirty thousand francs. We propose to deduct that amount from the arrears.

Mr. Gnagne — Hmm. And the roof? A roofer is expensive.

Moussa — Sir, if the roof is not repaired, the next tenant will have the same problem, and the ceiling will get worse.

Mr. Gnagne — The young man is right. All right. I give back the keys today, and the roof will be repaired within two weeks.

Maître Traoré wrote everything down in a settlement agreement: the keys returned the same day; the roof repaired within two weeks; one hundred and twenty thousand francs of arrears, paid in three monthly installments; and no lawsuit from either party. Mr. Gnagne and Ibrahim read the document, then signed it. They shook hands, a little stiffly.

That evening, Ibrahim slept in his studio again. Two weeks later, the roof was new. Moussa wrote in his notebook a sentence that Maître Kouassi liked to repeat: “A bad settlement is better than a good lawsuit.” Under it, he added his own lesson: “Never take the law into your own hands, whether you are a landlord or a tenant.”

Language corner

Expression	Français	Remarque
a settlement agreement	un protocole d'accord, une transaction	Il met fin au litige : *to settle out of court*, régler à l'amiable.
either party / both parties	l'une ou l'autre partie / les deux parties	*No lawsuit from either party.*
a lawsuit	un procès	*To file a lawsuit* : intenter un procès.
worth	d'une valeur de	*Books worth thirty thousand francs.*

Did you understand?

1. How much did Ibrahim finally have to pay, and how?
2. What argument convinced Mr. Gnagne to repair the roof?

III. A Night at the Police Station



Koffi, livreur à moto, porte une veste rouge le jour où un téléphone est volé au marché de Yopougon. Arrêté, placé en garde à vue, il a une nuit pour prouver qu'il n'y était pas.

Chapter 1. The Red Jacket

Words to know

Word	Français	Example
to steal / stolen	voler / volé	*A phone was stolen at the market.*
a suspect	un suspect	*The police arrested a suspect.*
to arrest	arrêter, interpeller	*Two officers arrested Koffi.*
a police station	un commissariat	*They took him to the police station.*
police custody	la garde à vue	*Koffi spent the night in police custody.*
a victim	une victime	*The victim pointed at the red jacket.*

The story

Koffi N'Guessan was twenty-four. He delivered food on his motorbike for a delivery app, from noon to midnight, six days a week. He liked his job and his red jacket, the color of the company. On Tuesday, at six in the evening, he was waiting for an order near the big market of Yopougon, when two police officers stopped in front of him.

Behind them, a woman was shouting: "That is him! The red jacket! He took my phone and drove away on a motorbike!" Koffi did not understand. "Madam, I have been here for ten minutes, I am waiting for a client," he said. But the officers asked him to get off his motorbike. They searched his bag: food, a helmet, his own old phone. No stolen phone. They arrested him anyway and took him to the police station.

Au commissariat, l'officier de police judiciaire, le lieutenant Yapi, s'adresse à Koffi.

Lt. Yapi — Mr. N'Guessan, you are placed in police custody for the theft of a mobile phone.

Koffi — But I did not steal anything! Thousands of riders wear this jacket in Abidjan.

Lt. Yapi — The victim recognized you. You will make a statement tomorrow morning.

Koffi — Can I call my family? Can I see a lawyer?

Lt. Yapi — You can inform a relative. And yes, you have the right to a lawyer.

Koffi called his sister, Mariam. She was a nurse at a clinic and had once met Maître Traoré, who had defended a colleague. At ten in the evening, Moussa was still at the firm, finishing his reading for the next day, when the office phone rang. Maître Traoré answered, listened for a minute, and took her bag. “Come with me, Moussa. Tonight, you will see how a lawyer works when everyone else is asleep.”

Language corner

Expression	Français	Remarque
a police officer	un policier	Mot neutre ; *cop* est familier.
to search	fouiller	*They searched his bag.* (*to research* = faire des recherches)
a statement	une déposition, une déclaration	*To make a statement* : faire une déposition.
the theft of	le vol de	*Theft* : le vol (l’infraction) ; *a thief* : un voleur.

Did you understand?

1. Why did the victim accuse Koffi?
2. What did the police find in Koffi’s bag?

Chapter 2. The Rights of a Suspect

Words to know

Word	Français	Example
the right to remain silent	le droit de garder le silence	*You have the right to remain silent.*
a lawyer	un avocat	*A suspect can talk to a lawyer during custody.*
48 hours	48 heures	*Police custody cannot last more than 48 hours without an extension.*
the public prosecutor	le procureur de la République	*Only the prosecutor can extend the custody.*
an alibi	un alibi	*Koffi has an alibi: he was waiting for a client.*
CCTV / a security camera	la vidéosurveillance	*A shop has a security camera.*

The story

The police station was noisy, even at night. Lieutenant Yapi allowed Maître Traoré to speak with her client in a small room. Koffi looked tired and afraid. “Listen to me,” she said. “You have rights. You can see a doctor if you need one. You can remain silent. Your custody cannot last more than forty-eight hours, unless the public prosecutor extends it. And you are presumed innocent until proven guilty.”

Moussa pose une question qui change tout.

Moussa — Koffi, you said you were waiting for an order. Does the delivery app record your position?

Koffi — Yes! The app follows me all the time. The clients can see where I am.

Aïcha — Then the app knows where you were at the exact time of the theft. That is your alibi.

Koffi — And there is a phone shop in front of the market, with a camera above the door.

Aïcha — Lieutenant, we ask you to get the GPS history from the app and the video from that shop. They will show the truth.

Lt. Yapi — All right. I will call the prosecutor and ask for both. We will see in the morning.

At two in the morning, Moussa and Maître Traoré drank bad coffee from a machine. “Why did you not just ask them to release him?” Moussa asked. “Because a lawyer does not shout, Moussa. A lawyer brings evidence,” she said. “The victim honestly believes Koffi is the thief. She saw a red jacket, that is all. Our job is to show the police another truth, with facts they can check.”

Language corner

Expression	Français	Remarque
presumed innocent until proven guilty	présumé innocent jusqu’à preuve de sa culpabilité	Principe fondamental du procès pénal.

Expression	Français	Remarque
to extend	prolonger	*The prosecutor may extend the custody.*
to release	relâcher, libérer	*He was released in the morning.*
the public prosecutor	le procureur de la République	En américain, on dit aussi *district attorney* (DA).

Did you understand?

1. Name three rights of a person in police custody mentioned in the chapter.
2. What two pieces of evidence does Maître Traoré ask for?

Chapter 3. Free at Dawn

Words to know

Word	Français	Example
footage	des images (vidéo)	*The footage shows the real thief.*
to be released	être libéré	*Koffi was released at eight o'clock.*
no charges	aucune poursuite	*The prosecutor decided to bring no charges.*
an apology	des excuses	*The victim made an apology to Koffi.*
the real culprit	le vrai coupable	*The police found the real culprit two days later.*
a lesson	une leçon	*Moussa wrote the lesson in his notebook.*

The story

At seven in the morning, Lieutenant Yapi came into the room with a laptop. He looked serious. On the screen, the video from the phone shop was playing. At 5:52 p.m., a young man in a red jacket grabbed a phone from the woman's hand and jumped on a motorbike. He was tall and thin. Koffi was short and strong. And his motorbike was blue, not black.

"And the GPS history arrived ten minutes ago," said the lieutenant. "At 5:52 p.m., Mr. N'Guessan was at a restaurant in Niangon, two kilometers away, picking up an order. The restaurant confirmed it." He closed the laptop. "The prosecutor has decided: no charges. Mr. N'Guessan, you are free to go. I am sorry for this night."

Devant le commissariat, Koffi retrouve sa sœur.

Mariam — Koffi! Are you all right? Did they hurt you?

Koffi — No, I am fine. Just tired. Maître Traoré and Moussa stayed all night.

The victim — Young man... I am so sorry. I saw the red jacket and I was sure. Please forgive me.

Koffi — It is okay, madam. I hope they find your phone.

Aïcha — Koffi, if you want, we can discuss later whether you have a claim for this wrongful arrest.

Koffi — Today, I just want to sleep. And to buy a jacket of another color!

Two days later, the police arrested the real culprit, a young man who had stolen three phones in the same market. Koffi went back to work, with a new blue jacket over the red one. On the way back to the Plateau, Moussa was silent for a long time. Then he took his notebook and wrote: "A suspect is not a culprit. A witness can be sincere and still be wrong. Only evidence decides."

Language corner

Expression	Français	Remarque
to bring charges / to drop the charges	engager des poursuites / abandonner les poursuites	*The prosecutor brought no charges.*
a wrongful arrest	une arrestation injustifiée	*Wrongful* : injuste, illégitime (*wrongful dismissal* : licenciement abusif).
free to go	libre de partir	Formule de fin de garde à vue.
p.m. / a.m.	de l'après-midi / du matin	*5:52 p.m.* = 17 h 52 (les Américains comptent sur 12 heures).

Did you understand?

1. Give two details of the video that prove Koffi is innocent.
2. What did Moussa learn from this case?

IV. Two Hundred Uniforms



Awa, couturière à Adjamé, décroche la commande de sa vie : deux cents uniformes pour un grand hôtel. Mais les pluies de juin inondent son atelier, et l'hôtel refuse de payer.

Chapter 1. The Order of a Lifetime

Words to know

Word	Français	Example
a seamstress	une couturière	*Awa is a seamstress in Adjamé.*
a contract	un contrat	*She signed a contract with a hotel.*
an advance (payment)	une avance, un acompte	*The hotel paid an advance of thirty percent.*
a delivery date	une date de livraison	*The delivery date was June 30.*
a penalty clause	une clause pénale	*The penalty clause provides one percent per day of delay.*
a flood	une inondation	*A flood closed her workshop for ten days.*

The story

Awa Diabaté had a small sewing workshop in Adjamé, with four sewing machines and three young apprentices. She made dresses for weddings and school uniforms. In April, the manager of the Lagoon Palace, a big hotel in Marcory, visited her workshop. He liked her work. "We need two hundred uniforms for our staff," he said. "Can you do it?"

The contract was signed on April 10. The price was six million francs. The hotel paid an advance of thirty percent, the rest on delivery. The delivery date was June 30. Article 7 contained a penalty clause: one percent of the price for each day of delay. Article 9 was a force majeure clause, but Awa did not read it carefully. She was too happy. It was the order of her lifetime.

Le 17 juin, au matin, Awa découvre son atelier après une nuit de pluies diluviennes.

Apprentice — Madam Awa! The water came into the workshop! The machines are under water!

Awa — My God... And the fabric? The fabric for the hotel?

Apprentice — The fabric is safe, it was on the top shelf. But we cannot work. There is no electricity.

Awa — Take photos of everything. I will send a message to the hotel manager now.

That morning, Awa sent a message to the hotel manager, with photos: “Sir, my workshop was flooded last night. We cannot work until the water and electricity return. I will do my best to deliver as soon as possible.” The manager answered with one word: “Noted.” The workshop stayed closed for ten days. Then Awa and her apprentices worked day and night.

On July 8, eight days late, Awa delivered two hundred perfect uniforms. A week later, she received a letter from the hotel: “Due to your delay of eight days, we apply the penalty clause: 480,000 francs. Moreover, we refuse to pay the balance until a new agreement is signed.” Awa read the letter three times. Then she put on her best dress and went to the Plateau.

Language corner

Expression	Français	Remarque
on delivery	à la livraison	*The rest on delivery* : le solde à la livraison.
the balance	le solde	Ce qui reste à payer ; *to pay the balance*.
a delay	un retard	Faux ami : « un délai » se dit *a deadline* ou *a time limit*.
Noted.	Noté. Pris en compte.	Accusé de réception laconique… qui servira de preuve.

Did you understand?

1. What are the main terms of the contract?
2. What did Awa do on the morning of the flood?

Chapter 2. Article 9

Words to know

Word	Français	Example
force majeure	la force majeure	*A flood can be a case of force majeure.*
beyond one's control	indépendant de sa volonté	*The flood was beyond Awa's control.*
unforeseeable	imprévisible	*The event must be unforeseeable.*
irresistible	irrésistible	*The event must be irresistible: impossible to avoid.*
to notify	notifier, informer officiellement	*The party must notify the other within 48 hours.*
the commercial court	le tribunal de commerce	*Disputes between businesses go to the commercial court.*

The story

Maître Traoré read the contract slowly, with a yellow pencil. Moussa read over her shoulder. When she arrived at Article 9, she stopped and read it aloud: "Neither party shall be liable for a delay caused by an event of force majeure, that is, an event beyond its control, unforeseeable and irresistible. The party affected must notify the other party within forty-eight hours." She looked up. "Awa, when did you inform the hotel?"

Awa montre son téléphone.

Awa — The same morning, at 7:15. Here is the message, with the photos. And his answer: "Noted."

Aïcha — Excellent. You notified the hotel within forty-eight hours, and the manager confirmed he received it.

Moussa — But was the flood really unforeseeable? It rains every June in Abidjan.

Aïcha — Good question, Moussa. Normal rain is foreseeable. But this was exceptional: the whole district was flooded, and the government declared a state of natural disaster.

Awa — So the hotel cannot ask for penalties?

Aïcha — Not for the ten days of the flood. And the delay was only eight days, so it is completely covered.

"What do we do now?" asked Awa. "Between businesses, a dispute goes to the commercial court," said Maître Traoré. "But first, the law requires an attempt to settle the dispute amicably. If we go to court without trying, our claim will be declared inadmissible." She turned to Moussa. "Prepare a letter to the hotel. We propose a meeting next week."

The meeting took place at the hotel. The hotel's lawyer, a young man in a blue suit, listened politely, then said: "A flood in June is not force majeure. My client maintains the penalties." Maître Traoré stood up calmly. "Then we will let the court decide," she said. In the car, Awa was worried. Moussa was excited. It would be his first real trial.

Language corner

Expression	Français	Remarque
shall	doit, devra	Dans un contrat, *shall* exprime l'obligation : *Neither party shall be liable…*
to be liable for	être responsable de	*Liability* : la responsabilité.
amicably	à l'amiable	*An amicable settlement* : un règlement amiable.
inadmissible	irrecevable	Une demande irrecevable n'est pas examinée au fond.

Did you understand?

1. What are the three conditions of force majeure in Article 9?
2. Why must they try to settle amicably before going to court?

Chapter 3. Before the Commercial Court

Words to know

Word	Français	Example
a trial	un procès	*It was Moussa's first real trial.*
a claim	une demande, une prétention	*The court rejected the hotel's claim.*
interest	des intérêts	*The hotel must pay the balance with interest.*
a judgment	un jugement	*The judgment was delivered three weeks later.*
pacta sunt servanda	les conventions doivent être respectées	*Pacta sunt servanda: contracts must be kept.*
a notebook	un carnet	*Moussa read his notebook again.*

The story

The commercial court of Abidjan was a modern building, busy and efficient. Three judges sat on the bench: a professional judge in the middle and two consular judges, experienced business people, on each side. The hotel's lawyer spoke first. He repeated that rain in June is normal in Abidjan, and that a professional seamstress should have planned for it.

Maître Traoré plaide.

Aïcha — Your Honor, my client does not claim that rain is force majeure. She claims that this flood was.

Aïcha — Here is the decree declaring a state of natural disaster in the district, and here are the photos of the workshop under water.

Aïcha — My client notified the hotel the same morning, as Article 9 requires. The manager answered: "Noted."

Consular judge — Maître, the delay was eight days. How long was the workshop closed?

Aïcha — Ten days, Your Honor. My client worked day and night to reduce the delay. She delivered two hundred perfect uniforms.

Presiding judge — Thank you. Judgment will be delivered in three weeks.

Three weeks later, the court delivered its judgment. The flood was exceptional, beyond Awa's control, unforeseeable and irresistible: it was a case of force majeure. Awa had notified the hotel in time. The delay was therefore excused, and the penalty clause could not apply. The hotel was ordered to pay the balance of 4,200,000 francs, with interest, plus the costs of the proceedings.

Awa hugged Maître Traoré, then Moussa. With the money, she bought two new machines and took out insurance against floods. That evening, Moussa opened his notebook and read his four lessons from the beginning. Then he wrote a fifth one, with the Latin words of Maître Kouassi: "Pacta sunt servanda. Contracts must be kept... unless something truly stronger than us makes it impossible. And then, read Article 9."

Language corner

Expression	Français	Remarque
the bench	le siège, les juges	*To sit on the bench* : siéger ; *the bar* : le barreau.
to order someone to pay	condamner quelqu'un à payer	*The hotel was ordered to pay the balance.*
the costs of the proceedings	les dépens	Frais du procès mis à la charge de la partie qui perd.
insurance	une assurance	*To take out insurance* : souscrire une assurance ; *a policy* : une police d'assurance.

Did you understand?

1. Why did the court reject the penalty clause?
2. What did Awa do with the money?

Answer key · Corrigés

I. The Missing Will

Chapter 1. A Widow at the Door

1. Why does Gervais think that Mrs. Yao has no rights?

Because she has no children, and he believes that only he can inherit.

Parce qu'elle n'a pas d'enfants et qu'il pense être le seul à pouvoir hériter.

2. Under what condition can the unborn child inherit?

The child must have been conceived before the death and must be born alive.

L'enfant doit avoir été conçu avant le décès et naître vivant.

Chapter 2. The Notary's Register

1. Why was it not a problem that Mr. Yao could not read?

Because he dictated his will to the notary, who wrote it and read it back to him before two witnesses.

Parce qu'il a dicté son testament au notaire, qui l'a écrit et le lui a relu devant deux témoins.

2. What does the will give to Gervais?

One field near the river.

Un champ près de la rivière.

Chapter 3. The Judgment

1. What was Gervais's main argument at the hearing?

That his uncle was very sick and could not make a valid will.

Que son oncle était très malade et ne pouvait pas faire un testament valable.

2. Which two pieces of evidence did Maître Traoré use?

A medical certificate from the hospital and the testimony of the two witnesses.

Un certificat médical de l'hôpital et le témoignage des deux témoins.

II. The Locked Door

Chapter 1. Rain in the Studio

1. Why did Ibrahim stop paying the rent?

Because the roof had a leak and the landlord did not repair it.

Parce que le toit fuyait et que le bailleur ne le réparait pas.

2. What did Moussa advise him to do first?

To send the landlord a formal letter instead of simply stopping payment.

Envoyer au bailleur une lettre officielle au lieu d'arrêter simplement de payer.

Chapter 2. Nobody Takes the Law into His Own Hands

1. What was Ibrahim's mistake?

He stopped paying the rent alone, without a formal notice and without asking a judge.

Il a cessé seul de payer le loyer, sans mise en demeure et sans saisir un juge.

2. Why was the landlord’s action illegal?

Because nobody can take the law into his own hands: an eviction requires a court order carried out by a bailiff.

Parce que nul ne peut se faire justice à soi-même : l’expulsion exige une décision de justice exécutée par un commissaire de justice.

Chapter 3. The Settlement

1. How much did Ibrahim finally have to pay, and how?

120,000 francs, in three monthly installments, after deducting 30,000 francs for the damaged books.

120 000 francs, en trois versements mensuels, après déduction de 30 000 francs pour les livres abîmés.

2. What argument convinced Mr. Gnagne to repair the roof?

Moussa explained that the next tenant would have the same problem and that the ceiling would get worse.

Moussa a expliqué que le prochain locataire aurait le même problème et que le plafond s’abîmerait davantage.

III. A Night at the Police Station

Chapter 1. The Red Jacket

1. Why did the victim accuse Koffi?

Because the thief wore a red jacket, like Koffi, and drove away on a motorbike.

Parce que le voleur portait une veste rouge, comme Koffi, et s’est enfui à moto.

2. What did the police find in Koffi’s bag?

Food, a helmet and his own old phone, but no stolen phone.

De la nourriture, un casque et son propre vieux téléphone, mais aucun téléphone volé.

Chapter 2. The Rights of a Suspect

1. Name three rights of a person in police custody mentioned in the chapter.

To see a doctor, to remain silent, to talk to a lawyer (and custody limited to 48 hours unless extended).

Voir un médecin, garder le silence, s’entretenir avec un avocat (et une garde à vue limitée à 48 heures sauf prolongation).

2. What two pieces of evidence does Maître Traoré ask for?

The GPS history of the delivery app and the video of the phone shop’s camera.

L’historique GPS de l’application de livraison et la vidéo de la caméra de la boutique de téléphones.

Chapter 3. Free at Dawn

1. Give two details of the video that prove Koffi is innocent.

The thief was tall and thin while Koffi is short and strong, and the thief’s motorbike was black while Koffi’s is blue.

Le voleur était grand et mince alors que Koffi est petit et costaud, et la moto du voleur était noire alors que celle de Koffi est bleue.

2. What did Moussa learn from this case?

That a suspect is not a culprit, that a sincere witness can be wrong, and that only evidence decides.

Qu'un suspect n'est pas un coupable, qu'un témoin sincère peut se tromper et que seules les preuves décident.

IV. Two Hundred Uniforms

Chapter 1. The Order of a Lifetime

1. What are the main terms of the contract?

Two hundred uniforms for six million francs, a 30% advance, the rest on delivery, a delivery date of June 30, and a penalty of 1% per day of delay.

Deux cents uniformes pour six millions de francs, une avance de 30 %, le solde à la livraison, une livraison au 30 juin et une pénalité de 1 % par jour de retard.

2. What did Awa do on the morning of the flood?

She asked her apprentice to take photos and sent a message with the photos to the hotel manager.

Elle a demandé à son apprentie de prendre des photos et a envoyé un message avec ces photos au directeur de l'hôtel.

Chapter 2. Article 9

1. What are the three conditions of force majeure in Article 9?

The event must be beyond the party's control, unforeseeable and irresistible.

L'événement doit être indépendant de la volonté de la partie, imprévisible et irrésistible.

2. Why must they try to settle amicably before going to court?

Because the law requires it for commercial disputes; otherwise the claim is inadmissible.

Parce que la loi l'impose pour les litiges commerciaux ; sinon la demande est irrecevable.

Chapter 3. Before the Commercial Court

1. Why did the court reject the penalty clause?

Because the flood was a case of force majeure, Awa notified the hotel in time, and the delay (8 days) was shorter than the closure (10 days).

Parce que l'inondation constituait un cas de force majeure, qu'Awa avait prévenu l'hôtel à temps et que le retard (8 jours) était inférieur à la fermeture (10 jours).

2. What did Awa do with the money?

She bought two new machines and took out insurance against floods.

Elle a acheté deux nouvelles machines et souscrit une assurance contre les inondations.

Glossary · Lexique

English	Français	Roman
48 hours	48 heures	*A Night at the Police Station*
an advance (payment)	une avance, un acompte	*Two Hundred Uniforms*
an alibi	un alibi	*A Night at the Police Station*
an apology	des excuses	*A Night at the Police Station*
to arrest	arrêter, interpeller	*A Night at the Police Station*
an authentic will	un testament authentique	*The Missing Will*
a bailiff	un commissaire de justice (huissier)	*The Locked Door*
to be released	être libéré	*A Night at the Police Station*
beyond one's control	indépendant de sa volonté	*Two Hundred Uniforms*
binding	qui a force obligatoire	*The Locked Door*
CCTV / a security camera	la vidéosurveillance	*A Night at the Police Station*
a certified copy	une copie certifiée conforme	*The Missing Will*
a claim	une demande, une prétention	*Two Hundred Uniforms*
the commercial court	le tribunal de commerce	*Two Hundred Uniforms*
a compromise	un compromis	*The Locked Door*
to contest	contester	*The Missing Will*
a contract	un contrat	*Two Hundred Uniforms*
a court order	une décision de justice	*The Locked Door*
the court rules	le tribunal statue	*The Missing Will*
to deduct	déduire	*The Locked Door*
a delivery date	une date de livraison	*Two Hundred Uniforms*
a deposit	une caution	*The Locked Door*
the estate	la succession (les biens du défunt)	*The Missing Will*
eviction	l'expulsion	*The Locked Door*
a flood	une inondation	*Two Hundred Uniforms*

English	Français	Roman
footage	des images (vidéo)	*A Night at the Police Station*
force majeure	la force majeure	*Two Hundred Uniforms*
a forgery	un faux	*The Missing Will*
a formal notice	une mise en demeure	*The Locked Door*
a hearing	une audience	*The Missing Will*
an heir	un héritier	*The Missing Will*
in installments	en plusieurs versements	*The Locked Door*
interest	des intérêts	*Two Hundred Uniforms*
irresistible	irrésistible	*Two Hundred Uniforms*
a judgment	un jugement	*Two Hundred Uniforms*
a landlord	un bailleur, un propriétaire	*The Locked Door*
a law firm	un cabinet d'avocats	*The Missing Will*
a lawyer	un avocat	*A Night at the Police Station*
a leak	une fuite	*The Locked Door*
a lease	un bail	*The Locked Door*
a lesson	une leçon	*The Missing Will*
a medical certificate	un certificat médical	*The Missing Will*
a meeting	une réunion, un rendez-vous	*The Locked Door*
no charges	aucune poursuite	*A Night at the Police Station*
a notary	un notaire	*The Missing Will*
a notebook	un carnet	*Two Hundred Uniforms*
to notify	notifier, informer officiellement	*Two Hundred Uniforms*
pacta sunt servanda	les conventions doivent être respectées	*Two Hundred Uniforms*
a penalty clause	une clause pénale	*Two Hundred Uniforms*
police custody	la garde à vue	*A Night at the Police Station*
a police station	un commissariat	*A Night at the Police Station*
the public prosecutor	le procureur de la République	*A Night at the Police Station*

English	Français	Roman
the real culprit	le vrai coupable	*A Night at the Police Station*
a register	un registre	*The Missing Will*
rent arrears	les arriérés de loyer	*The Locked Door*
repairs	des réparations	*The Locked Door*
the right to remain silent	le droit de garder le silence	*A Night at the Police Station*
a seamstress	une couturière	*Two Hundred Uniforms*
a settlement	un accord, une transaction	*The Locked Door*
to sign	signer	*The Locked Door*
to steal / stolen	voler / volé	*A Night at the Police Station*
a suspect	un suspect	*A Night at the Police Station*
a tenant	un locataire	*The Locked Door*
a trial	un procès	*Two Hundred Uniforms*
an unborn child	un enfant à naître	*The Missing Will*
unforeseeable	imprévisible	*Two Hundred Uniforms*
valid	valable	*The Missing Will*
a victim	une victime	*A Night at the Police Station*
a widow	une veuve	*The Missing Will*
a will	un testament	*The Missing Will*
a witness	un témoin	*The Missing Will*